

CITY OF CHEYENNE – CITY COUNCIL AGENDA ITEM SHEET

DATE OF COUNCIL MEETING: July 8, 2013

TYPE OF DOCUMENT: (X) ORDINANCE () RESOLUTION () PRELIMINARY PLAT/
PRELIM PUD ZONE CHANGE () LEASE/CONTRACT () CHANGEORDER/CONTRACT
MODIFICATION () CONSIDER BID () APPLICATIONS/LICENSES/PERMITS
() APPOINTMENTS () ANNOUNCEMENTS/REPORTS/MOTIONS () OTHER

SPONSOR: (ORDINANCE OR RESOLUTION) Sean Allen

EXACT WORDING FOR AGENDA: An Ordinance vacating portions of Van Buren Avenue and Cheyenne Street adjacent to Tracts 145, 146, 147 and 148, Sunnyside Addition, 5th Filing, Cheyenne, Wyoming (located north of E. Pershing Boulevard and east of Polk Avenue).

(1% Sales Tax Funding/Years) N/A
(Other Funding _____)

CONTACT PERSON: Donna Ferguson PHONE: 638-4342 DEPT: Development Office

OTHER CITY DEPTS AFFECTED: N/A

OTHER GOV'T AGENCIES AFFECTED: N/A

FINANCIAL IMPACT PROPOSED OR CONDITIONS WHICH AFFECT CITY: N/A

CONTRACT TERM: N/A STARTING DATE: N/A

	YES	NO	N/A
Is funding budgeted?	()	()	(X)
Were Bids called for?	()	()	(X)
Affected parties notified of Council procedure and dates?	(X)	()	()
Has bond, insurance or other security been arranged?	()	()	(X)
Have legal descriptions been checked?	(X)	()	()

Agenda Item approved / reviewed by :

Risk Mgr () City Attorney () Dept. Head (X)

General Comments: The Cheyenne Planning Commission recommended approval of the above described Vacation request by a unanimous vote of 4 to 0 at their meeting on July 1, 2013. See the attached Staff Report for more definitive information.

Submitted by: Brandon Cammarata Title: Planning & Dev Dir. Date: July 2 2013

UPON PASSAGE OF THE AGENDA ITEM, COPIES SHOULD BE SENT TO:

City Clerk's Office

Engineering Tech Branch

Development Office

Building Safety Office

STAFF REPORT
“Polk Addition”
Summation

Street Vacation Process

CASE NUMBER: UDC-13-00216
FILE CODE: RDCY-V
PREPARED BY: Donna Ferguson
MEETING July 1, 2013 – Planning Commission
DATES: July 8, 2013 – City Council

Required documents submission:

All required documents have been submitted and reviewed by staff.

- Application
- Vacation Map
- Petition for Vacation

RECOMMENDATION: The Planning and Development Office recommends approval of the vacation request pursuant to criteria outlined in Article 2, Section 2.1.4.d of the Cheyenne UDC.

STAFF REPORT UPDATE (07/02/13): At its meeting on Monday, July 1, 2013, the City of Cheyenne Planning Commission recommended approval of the above described Street Vacation by a vote of 4 to 0.

STAFF REPORT
"Polk Addition"

Street Vacation Process

CASE NUMBER:	UDC-13-00216	File Code:	RDCY-V
PREPARED BY:	Donna Ferguson		
SUBMITTED:	May 24 1, 2013		
PRE-APP MEETING:	January 17, 2013		
MEETING DATES:	July 1, 2013 – Planning Commission July 8, 2013 – City Council		
OWNER:	Michel Simon Winsome Capitol Group LLC 4 Pine Spring Lane Owing Mills, MD 21117 Dennis Steele 3409 Polk Avenue Cheyenne, WY 82001 Richard Loetscher 5320 East Pershing Boulevard Cheyenne, WY 82001		
APPLICANT:	Doug Walker 6908 Foxgrove Road Cheyenne WY 82009 421-4265		
AGENT:	Brad Emmons AVI p.c. 1103 Old Town Lane, Ste 101 Cheyenne, WY 82009 778-8236		
WORK DESCRIPTION:	Vacation of portions of Cheyenne Street and Van Buren Avenue		
DOCUMENTS:	Application, Vacation Map, Petition for Vacation		
OTHER:	Adjacent property owners were notified by mail		
LEGAL:	Lots 1 -3, Block 1, Polk Addition (replat in process), Cheyenne, Wyoming		
LOCATION:	North of Pershing Boulevard and east of Polk Avenue		
AREA TO BE VACATED:	0.82 acres		
CURRENT ZONING:	AR Agricultural Residential		
PROPOSED ZONING:	LI Light Industrial		

LAND USE: Vacant

PROPOSED LAND USE: Storage units (Storage Park)

SURROUNDING LAND USES:

DIRECTION	LAND USE(S)	ZONING	ANNEXATION STATUS
West	Rural Residential, Storage Park, Single-Family Residential, Vacant Commercial	AR, PUD, MU	County
North	Rural Residential	AR	County
East	Rural Residential	AR	County
South	Single-Family Residential	MR-2	City



SUMMARY:

The applicant is requesting a vacation of portions of Van Buren Avenue and Cheyenne Street. Both streets are platted yet unbuilt rights-of-way. The vacation of these streets would not appear to have negative impacts to the City's street network system or adjacent property owners. The

City has no plans to connect Van Buren to the north or Cheyenne Street to the east due to the location of Dry Creek and adjacent property owners will continue to have access to their properties from either an existing right-of-way or an access easement. The streets vacation will result in adjacent County property owners to the north and east acquiring land that is annexed to the City, should they choose, these property owners may pursue de-annexation of the acquired rights-of-way.

STREET VACATION DATA:

The applicant is requesting a vacation of portions of Van Buren Avenue and Cheyenne Street. Both streets are platted yet unbuilt rights-of-way and are located on the east side of the City north of Pershing Boulevard, east of Polk Avenue and southwest of Dry Creek.

STREET VACATION ANALYSIS:

Van Buren Avenue is a 50' right-of-way which runs north-south. A portion of Van Buren to the north of the proposed vacation was previously vacated in 1994 as part of the Dry Creek Flood Control project. This previous vacation removed the option to connect Van Buren Avenue to the north. Vacating the remainder of Van Buren south to Pershing Boulevard would not appear to have any negative impacts on the City's street network system or to the adjacent property owners. This is because the City does not have plans to connect Van Buren Avenue across Dry Creek to the north and the adjacent property owner to the east will have legal access to their property from Pershing Boulevard and the adjacent property owner to the west will have legal access to their property from Polk Avenue.

Cheyenne Street is a 60' right-of-way which runs west-east. The previous vacation of portions of Van Buren Avenue in 1994 removed the option for Cheyenne Street to connect east to Van Buren Avenue. While the vacation of Cheyenne Street will remove a formal City street access for legally platted lots adjacent to the north, a 30' access easement is being provided in place of the right-of-way. Like the vacation of Van Buren Avenue, the vacation of Cheyenne Street would not appear to have negative impacts to the City's street network system or adjacent property owners. This is because the City does not have plans to extend Cheyenne Street east across Dry Creek and the adjacent property owner to the north will have access to their property via an easement and the adjacent property owner to the south will have legal access from Polk Avenue.

The adjacent property owners to the north and east of the proposed rights-of-way vacation reside in County property. Vacating the rights-of-way will result in the abutting County property owners acquiring land which is under City jurisdiction. Other than having to pay a different property tax rate on the annexed property, the City is not aware of any other potential issues related to the vacation. Should they choose, the effected property owners may pursue de-annexation of the acquired rights-of-way.

STREET VACATION REVIEW CRITERIA ANALYSIS:

In reviewing, providing comments, and making recommendations and decisions on a proposed zoning map amendment, the staff, Planning Commission and City Council shall use the following criteria:

1. The vacation meets the purposes, intent, and applicable standards of Article 4.

The proposed vacation of portions of Cheyenne Street and Van Buren Avenue will allow better use of the property as developable land rather than unbuilt and unnecessary rights-of-way. This is because the streets are not necessary considering the context, character and intensity of expected development in this area. Furthermore, the streets vacation will not reduce the ability of the adjacent properties to be developed according to their respective zone district and future land use plan. The applicant will be coordinating the development of their property and utilities with the construction of Polk Avenue and the greenway path in an efficient manner.

2. The ability of all existing and potential future development on adjacent lots to meet all applicable standards for development in the existing zoning district, including other development options in the event that any specific development proposed in association with the vacation is not executed after approval.

The rights-of-way vacation will not inhibit the ability for adjacent lots to develop according to their respective zone districts. AR Agricultural Residential zoning resides to the north and east of the proposed streets vacation. AR is intended for agriculture and residential uses on a minimum of ½ acre lots that typify a rural lifestyle and generally require little or no public infrastructure. To the south and west of the proposed vacation an LI Light Industrial zoning district is proposed. In this district, there are no lot area, lot frontage or building height zoning requirements and 25' setback requirement for all properly lines adjacent to streets and a maximum lot coverage requirement of 85%. The streets vacation would not restrict either property from developing according to either the AR or LI zone district regulations. The vacation of Cheyenne Street will take away a formal street access for platted lots adjacent to the north, however, a 30' access easement is being provided in place of the right-of-way will allow access.

3. The vacation reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities.

Vacating both Cheyenne Street and Van Buren Avenue will not impact the City's street network. Its important to note that a portions of Van Buren Avenue has already been vacated and that this terminated the option for Van Buren Avenue to connect north or for Cheyenne Street to connect to Van Buren. Furthermore, the streets vacation should have minimal impact on the future development of adjacent properties as these properties will still be able to plat appropriate block and lot arrangements and have provisions for access, utilities, water, sewer, storm drainage and open space systems.

4. The application meets the public interest, and is not otherwise prohibited by other city, state or federal laws.

Because the City does not intend to construct either of these rights-of-way, vacating the street to the adjacent land owners will put platted yet inbuilt streets, which are not planned to be constructed, into private property that can be developed. This vacation will also release the City from any responsibility for maintenance and construction of the rights-of-way. Furthermore, it would generate property tax dollars rather than sitting fallow as unbuilt streets. It is the City's understanding that the abutting County land owners are aware that they are appropriating land that is under City jurisdiction. Should they choose these property owners may pursue de-annexation of the acquired rights-of-way.

5. The review and recommendations of other reviewing bodies.

Please see review comments.

REVIEWING AGENCIES AND REVIEWER'S COMMENTS:

City Surveyor

1. The dimensions for the proposed street vacations need to be provided. Cheyenne street is a 60' r/w which will split 30' each side of centerline to the owners of record to the north and south of the street. These dimensions ought to be shown. And van buren ave. Is a variable r/w per the plat of record for sunnyside addition fifth filing, and these r/w width dimensions and the n-s dimension (500'?) Need to be provided. Again, this r/w vacation will be divided down the centerline and conveyed to the owners of record to the east and west. The size of these different areas needs to be determinable by the provision of dimensions.

Note: Resolved, dimensions have been provided.

2. I believe it has already been done, but want to reiterate that the adjoiners (county owners) to the north and east, who will be acquiring some of these vacated square footages, need to be fully advised that these areas that they are acquiring, are in fact annexed to the city. These areas will be under city jurisdiction for future compliance requirements unless the individual land owners choose to de-annex, which is an involved process. Just want to make sure they are fully advised of the status of the strips of land they will be acquiring with this vacation.

Note: County owners have been advised.

3. The vicinity map needs to be amended to reflect the street vacation areas, not the platting area also under consideration.

Note: Resolved, the vicinity map has been updated.

County Planning

1. The proposed rezoning from AR-Agricultural to LI-Light Industrial is not consistent with PlanCheyenne's urban residential designation and is not compatible with existing residential land uses in the area.

Note: To be addressed in the respective Zone Change request.

2. An amendment to PlanCheyenne should be considered first. The proposed rezoning creates "spot zoning", as the nearest Industrial zone is almost one mile distant. This would also create the potential for wholesale land use change in this unincorporated area. If this is the City's intent, there should be a larger conversation with the County and community.

Note: To be addressed in the respective Zone Chang request.

3. The application states a proposed use as storage. An existing storage facility cited (Sunnyside 5th Tracts 141, 142) was developed as a Planned Unit Development, approved 16 July 1996. This PUD restricts permitted uses and adopts setbacks, coverage, parking and lighting requirements consistent with the CB Community Business Zone. A PUD may mitigate impacts on the community which the Industrial zoning does not.

Note: To be addressed in the respective Zone Change request.

4. The Road Vacation Map for Cheyenne Street and Van Buren Avenue would leave legally divided parcels without legal public access (Sunnyside Addition Filing Tracks 130, 131).

Note: An easement is being provided which will provide access for these parcels.

5. A portion of Van Buren Avenue was vacated by the Laramie County Board 19 July 1994, Dry Creek flood control project. A utility easement was reserved for Cheyenne Light, Fuel and Power.

Note: To be addressed in the respective Final Plat request.

6. The proposed road vacation would also leave parcels to the north and east partially annexed to the City, possibly leading to confusion over land use authority. If the ROW is vacated, the split parcel areas should be de-annexed.

Note: Property owners may pursue de-annexation.

Traffic Engineering

1. A Transportation Worksheet to determine TIA/TIS requirements was provided as required (ref. Article 3, Section 3.1.1.c, UDC). The request for TIS Waiver was signed as required. The number of trips generated is less than the threshold amount which triggers a TIA or a TIS. The waiver request is hereby granted. If development occurs in a manner not in keeping with the land use assumptions contained in the Worksheet for Polk Addition, a Transportation Impact Analysis or Study shall be required.
2. A driveway approach for minor arterial design street type should be radial curb (ref. Article 4, Section 4.3.4, UDC). A driveway approach for local street type should be flared curb. Design standards for intersections of public streets can be utilized where high speed or frequent vehicle access is expected (generally access points with anticipated ADT more than 500 vehicles).
3. The Sight Distance Triangle shall maintain adequate, unobstructed sight distance in both directions from the access driveway (ref. Article 4, Section 4.3.5.c, UDC). This triangular space is to be kept free from all obstructions to vision, including plant materials and vegetation, between the heights of 2.5 and 12 feet above the street grades. The sight distance triangle should be calculated utilizing criteria for controlled intersections. Site triangles should be shown on the site plan and the landscape plan.
4. Curb ramps meeting ADA Accessibility Standards shall provide a direct, non-diverted approach along the block, into the pedestrian crossing (ref. Article 4, Section 4.3.5.e, UDC).
5. Appropriate access design is highly dependent on context, specific transportation goals, and site variables (ref. Article 4, Section 4.3.6.b, UDC). Alternative standards that better meet the intent of Block and Lot Access may be approved based on a Transportation Impact Study. Trip generation and trip distribution as well as ADT information is needed to design the driveway approach for type, width, and throat length. The driveway throat length is typically defined as the distance measured from the back of sidewalk or stop bar exiting the site to the first point of conflict in the driveway. Primary driveways into mixed use, commercial and employment centers shall be of sufficient length to allow vehicles to enter and not be impacted from on-site conflicts in which traffic backs out onto the street system. Parking spaces backing into the driveway throat will impact the internal circulation and could result in stacking of vehicles on the roadway and should be avoided. The access design, number, location, width and driveway length shall meet with the approval of the City Engineer.
6. Lot access width shall be limited based upon the lot frontages subject to the standards in Table 4-13 (ref. Article 4, Section 4.3.6.c, UDC). Standards for specific street classifications or street design types may supersede these general allowances.
7. Lot access points shall be separated from streets and other access points along a single block face and from the street edge of the intersection as specified for each specific street

design type (ref. Article 4, Section 4.3.6.d, UDC). The minimum access spacing for minor arterial streets from a property corner or another access is 330 feet. The minimum access spacing for Commercial/Industrial local streets from a property corner or another access is 100 feet and 30 feet, respectively.

8. At pedestrian crossings at access points that are greater than 22 feet wide, a crosswalk differentiated from vehicle surfaces by different materials, texture or color, or a speed table should be used (ref. Article 4, Section 4.3.6.e.2, UDC).

9. Pedestrian crossings at access points where high speed or frequent vehicle access is expected (generally access points with anticipated ADT more than 500 vehicles), lot access at street grade may be allowed provided design standards for intersections of public streets, including intersection design are used (ref. Article 4, Section 4.3.6.e.3, UDC).

10. Parking or loading areas that require backing onto a public street are prohibited (ref. Article 4, Section 4.3.6.g.5, UDC).

11. Sight distance requirements for street intersections should be applied to driveways where volumes and speed of traffic in the street and volumes for the access point warrant treating it as a street intersection (ref. Article 4, Section 4.3.6.g.5, UDC).

12. The location of access to properties on opposite sides of collector roadways shall be coordinated so they do not interfere with one another (ref. Article 4, Section 4.3.7.e, UDC). Driveway approaches directly opposite each other are desirable. Show opposing driveways on the site plan.

13. The builder and/or the developer are responsible for the construction of sidewalks (ref. Article 4, Section 4.5.2.b, UDC).

14. All mandatory signage and striping (ref. Article 4, Section 4.5.2.d, UDC) are to be shown in the project civil improvement drawings in conformity with the City of Cheyenne Standards and the Manual on Uniform Traffic Control Devices (MUTCD).

15. All situations where a sidewalk or pedestrian facility intersects with an internal vehicle circulation shall be treated by one of the following manners: (1) the material, layout and grade of the pedestrian access shall be continuous as it crosses the grade of the driveway; or (2) a crosswalk differentiated from vehicle surfaces by different materials, texture or color, or a speed table (ref. Article 6, Section 6.2.3.a, UDC).

16. The number, location, dimension, and signing of accessible parking stalls shall be in accordance with the current ADA Standards for Accessible Design (ref. Article 6, Section 6.2.4.d, UDC).

17. Stall layout width and length and aisle width for angle parking is as specified in Article 6 of the UDC (ref. Article 6, Section 6.2.8.b, UDC).

18. All parking, circulation and loading areas shall be graded for proper drainage and be paved (ref. Article 6, Section 6.2.8.c, UDC). The maximum grade shall not exceed 8%. The maximum desirable grade in any direction is 5%.

19. As part of the project, the applicant shall provide in sufficient detail the project's proposal to provide pedestrian and bicycle connections within the site to the local offsite pedestrian and bicycle destinations in close proximity to the project (ref. Appendix E, UDC). This assessment shall describe the directness of the route to and from various parts of the project, the continuity of the pedestrian and bicycle system to reach these destinations and the design elements to assure safe access.

20. Easements shall be graded to facilitate the passage of sewer maintenance vehicles without high centering. Paved or gravel access shall be provided to all manholes that are to be owned and maintained by the BOPU, which are on sewer mains that are twelve (12) inches in diameter or smaller. The paved or gravel access shall be capable of supporting an H20 vehicle under all weather conditions (Section 02700, City of Cheyenne & BOPU

Construction Standards and Specifications).

Note: Items 2-20 to be addressed during the site plan review process.

Fire Department

Proposed vacation presents no impact at this time. We will need to review for fire access at the time of development.

Metropolitan Planning Office

The vacation of Van Buren should not include a 30' X 30' access easement.

Note: Resolved, easement removed.

REVIEWING AGENCIES WITH NO COMMENT:

Drainage Engineering

Urban Planning

REVIEWING AGENCIES NOT RESPONDING:

Development Department

OTHER COMMENTS RECEIVED:

None

Encl: Staff Aerial Map
Zone Change Map

cc: Agent
Applicant
Owner
Files: POLK-FPZ, UDC-13-00215

STATE OF WYOMING)
)
COUNTY OF LARAMIE)

PETITION FOR VACATION (CITY)
TO: **THE HONORABLE MAYOR**

Rick Kayser
AND MEMBERS OF THE CITY COUNCIL,
CITY OF CHEYENNE, WYOMING

KNOW ALL:

THAT Dennis Steele
is the owner of the following described real property:

Sunnyside Addition 5th Filing Tracts 129-132 plus portion of vacated
and Winsome Capital Group LLC Van Buren
is the owner of the following described real property:

Sunnyside Addition 5th Filing, Tracts 145, 146, 147 & 148 plus a portion of
and Richard Coetscher Vacated
is the owner of the follow described real property: VanBuren

See his petition	
and	

is the owner of the follow described real property:

all of which properties are adjacent to the following right-of-way or land

Van Buren & Cheyenne Street

which the undersigned owners hereby petition to be vacated by the City of Cheyenne. The above named owners constitute the owners of all property abutting the portion of dedicated right-of-way or land for which vacation is requested.

BUILDING & DEVELOPMENT OFFICE

MAY 24 2013

RECEIVED

THAT the portion of right-of-way or land which the undersigned owners request to be vacated includes the following sections of dedicated streets and alleys

Cheyenne Street east of Folk Avenue to Dry Creek Channel

Van Buren Ave north of Pershing Boulevard

adjacent to the following lot (s) and block (s) in the following subdivision:

Sunnyside Addition 9th Filing, Tracts 129-132 & Tracts 145-148

The undersigned petitioners hereby respectfully request that said described portions of dedicated right-of-way or land be vacated by the City of Cheyenne and that title to the vacated area revert to the adjacent property owners in accordance with established policy. An accurate map, prepared by:

Adam Deschler

a Land Surveyor registered in the State of Wyoming, accompanies this petition and a plat of all the real property and right-of-way described herein has previously been filed with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

DATED THIS

24

DAY OF

May

20

13

Respectfully submitted,

Dennis Steele

ATTEST

[Signature]

Signature

Project Manager

Title

STATE OF WYOMING)
)
COUNTY OF LARAMIE)

PETITION FOR VACATION (CITY)
TO: **THE HONORABLE MAYOR**

Rick Kayson
AND MEMBERS OF THE CITY COUNCIL,
CITY OF CHEYENNE, WYOMING

KNOW ALL:

THAT Richard Loetscher
is the owner of the following described real property:

~~§1b-§66~~: SW¹/₄ SE¹/₄ SW¹/₄, S¹/₂ NW¹/₄ SE¹/₄ SW¹/₄, SW¹/₄ NE¹/₄ SE¹/₄ SW¹/₄,
and Winsome Capital Group LLC continued below
is the owner of the following described real property:

Sunnyside Addition 5th Flng, Tracts 145, 146, 147 & 148 plus a portion of
and [redacted] Dennis Steele vacated
is the owner of the follow described real property: Van Buren

Sunnyside Addition 5th Flng, Tracts 129-132 plus portion of vacated
and [redacted] Van Buren
is the owner of the follow described real property:

all of which properties are adjacent to the following right-of-way or land

Van Buren & Cheyenne Street
which the undersigned owners hereby petition to be vacated by the City of Cheyenne.
The above named owners constitute the owners of all property abutting the portion of
dedicated right-of-way or land for which vacation is requested.

W $\frac{1}{2}$ SE $\frac{1}{4}$ SE $\frac{1}{4}$ SW $\frac{1}{4}$, W $\frac{1}{2}$ E $\frac{1}{2}$ SE $\frac{1}{4}$ SE $\frac{1}{4}$ SW $\frac{1}{4}$ Sec 26
plus a portion of vacated Van Buren Ave

BUILDING & DEVELOPMENT OFFICE

MAY 24 2013

RECEIVED

THAT the portion of right-of-way or land which the undersigned owners request to be vacated includes the following sections of dedicated streets and alleys

Cheyenne Street east of Park Avenue to Dry Creek Channel
Van Buren Ave north of Pershing Blvd

adjacent to the following lot (s) and block (s) in the following subdivision:

Sunnyside Addition 5th Filing Tracts 129-132 &
Tracts 145-148

The undersigned petitioners hereby respectfully request that said described portions of dedicated right-of-way or land be vacated by the City of Cheyenne and that title to the vacated area revert to the adjacent property owners in accordance with established policy. An accurate map, prepared by:

Adam Deschler

a Land Surveyor registered in the State of Wyoming, accompanies this petition and a plat of all the real property and right-of-way described herein has previously been filed with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

DATED THIS

24th

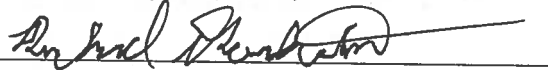
DAY OF

MAY

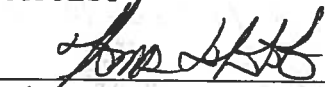
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13

Respectfully submitted,



ATTEST



Signature

Project Manager

Title

STATE OF WYOMING)
) SS
COUNTY OF LARAMIE)

PETITION FOR VACATION (CITY)

TO: **THE HONORABLE MAYOR**

Rick Kayser

AND MEMBERS OF THE CITY COUNCIL,
CITY OF CHEYENNE, WYOMING

KNOW ALL:

THAT Winsome Capital Group LLC
is the owner of the following described real property:

Sunnyside Addition Sth Filing, Tracts 145, 146, 147 & 148 plus a portion of vacated Van Buren
and Dennis Steele

is the owner of the following described real property:

Sunnyside Addition Sth Filing, Tracts 129-132 Plus portion of vacated Van Buren
and Richard Loetscher - see his petition

is the owner of the follow described real property:

See his petition
and

is the owner of the follow described real property:

all of which properties are adjacent to the following right-of-way or land

Van Buren Ave & Cheyenne Street

which the undersigned owners hereby petition to be vacated by the City of Cheyenne.
The above named owners constitute the owners of all property abutting the portion of
dedicated right-of-way or land for which vacation is requested.

BUILDING & DEVELOPMENT OFFICE

MAY 24 2013

RECEIVED

THAT the portion of right-of-way or land which the undersigned owners request to be vacated includes the following sections of dedicated streets and alleys

Cheyenne Street east of Polk Avenue to Dry Creek Channel
Van Buren Ave north of Pershing Blvd

adjacent to the following lot (s) and block (s) in the following subdivision:

Sunnyside Addition 5th Filing, Tracts 129-132 &
Tracts 145-148

The undersigned petitioners hereby respectfully request that said described portions of dedicated right-of-way or land be vacated by the City of Cheyenne and that title to the vacated area revert to the adjacent property owners in accordance with established policy. An accurate map, prepared by:

Adam Deschler

a Land Surveyor registered in the State of Wyoming, accompanies this petition and a plat of all the real property and right-of-way described herein has previously been filed with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

DATED THIS

10th

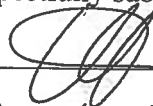
DAY OF

May

,20

13

Respectfully submitted,



MICHAEL SIMON, PRES.

ATTEST



Signature

Development Coordinator

Title

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE VACATING PORTIONS OF VAN BUREN AVENUE AND CHEYENNE STREET ADJACENT TO TRACTS 145, 146, 147 AND 148, SUNNYSIDE ADDITION, 5TH FILING, CHEYENNE, WYOMING (LOCATED NORTH OF E. PERSHING BOULEVARD AND EAST OF POLK AVENUE)."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the property described as portions of Van Buren Avenue and Cheyenne Street adjacent to Tracts 145, 146, 147 and 148, Sunnyside Addition, 5th Filing, Cheyenne, Wyoming be and is hereby vacated as shown on the Vacation Map attached hereto and incorporated herein.

Section 2. That the vacation of portions of Van Buren Avenue and Cheyenne Street is in the best interest of the City of Cheyenne and its residents.

Section 3. That said vacated rights-of-way shall revert to the adjacent property owners pursuant to Wyoming law and subject to that certain Memorandum of Understanding between Doug Walker and Richard T. Loetscher, attached hereto and incorporated herein, which alters the otherwise equal reversion of vacated Van Buren Avenue to adjacent property owners Messrs. Walker and Loetscher, by granting Mr. Walker an additional five (5) feet of width by the length of vacation along Van Buren Avenue.

Section 4. That the said vacated land shall be subject to any easements, reservations and restrictions of record and as represented on the attached Vacation Map.

Section 5. That the City Clerk is directed to record this ordinance, together with the Memorandum of Understanding and Vacation Map, with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

Section 6. That the City Engineer's office is directed to change the Official City Map to reflect this vacation and the Official Zoning Map designating the vacation request for the properties as indicated as zone AR Agricultural Residential District and LI Light Industrial.

Section 7. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 8. That this ordinance shall be in full force and effect upon its publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

RICHARD L. KAYSEN, MAYOR

(SEAL)
ATTEST:

CAROL INTLEKOFER, CITY CLERK

Memorandum of Understanding

Between

Doug Walker
6908 Foxglove Drive
Cheyenne, WY 82009-5708

And

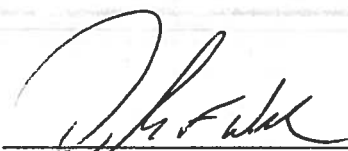
Richard T. Loetscher
5320 E. Pershing Blvd.
Cheyenne, WY 82001

We, Doug Walker and Richard T. Loetscher, agree to this MoU regarding the vacation of the VanBuren right-of-way on east side of the property to be platted as Polk Addition. More particularly, a replat of Tracts 145 – 148, Sunnyside Addition, Fifth Filing, A replat of a portion of vacated Van Buren Avenue, a replat of a portion of vacated Cheyenne Street and being situated in the SW ¼ of Section 26, Township 14 North, Range 66 west of the 6th Principal Meridian, City of Cheyenne, Laramie County, Wyoming.

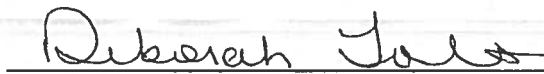
The parties agree to the following articles and clauses:

Purpose and Scope

1. Agree that Mr. Walker will receive an additional 5' width by the length of vacation along VanBuren Avenue.



Doug Walker

Richard T. Loetscher

Attested By: ~~Thomas D. Cobb~~ Deborah Folts

Memorandum of Understanding

Between

Doug Walker
6908 Foxglove Drive
Cheyenne, WY 82009-5708

Michel Simon
WINSOME Capital Group, LLC
4 Pine Sprig Lane
Owing Mills, MD 21117-1617

And

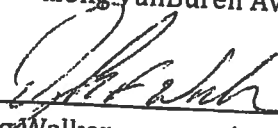
Richard T. Loetscher
5320 E. Pershing Blvd.
Cheyenne, WY 82001

We, Doug Walker, Michel Simon, and Richard T. Loetscher, agree to this MoU regarding the vacation of the VanBuren right-of-way on east side of the property to be platted as Polk Addition. More particularly, a replat of Tracts 145 - 148, Sunnyside Addition, Fifth Filing, A replat of a portion of vacated Van Buren Avenue, a replat of a portion of vacated Cheyenne Street and being situated in the SW $\frac{1}{4}$ of Section 26, Township 14 North, Range 66 west of the 6th Principal Meridian, City of Cheyenne, Laramie County, Wyoming.

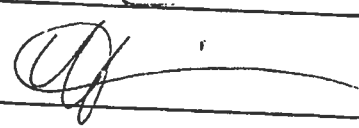
The parties agree to the following articles and clauses:

Purpose and Scope

1. Agree that Mr. Walker will receive an additional 5' width by the length of vacation along VanBuren Avenue.



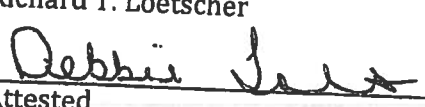
Doug Walker



Michel Simon



Richard T. Loetscher



Attested

BUILDING & DEVELOPMENT OFFICE

JUL 01 2013

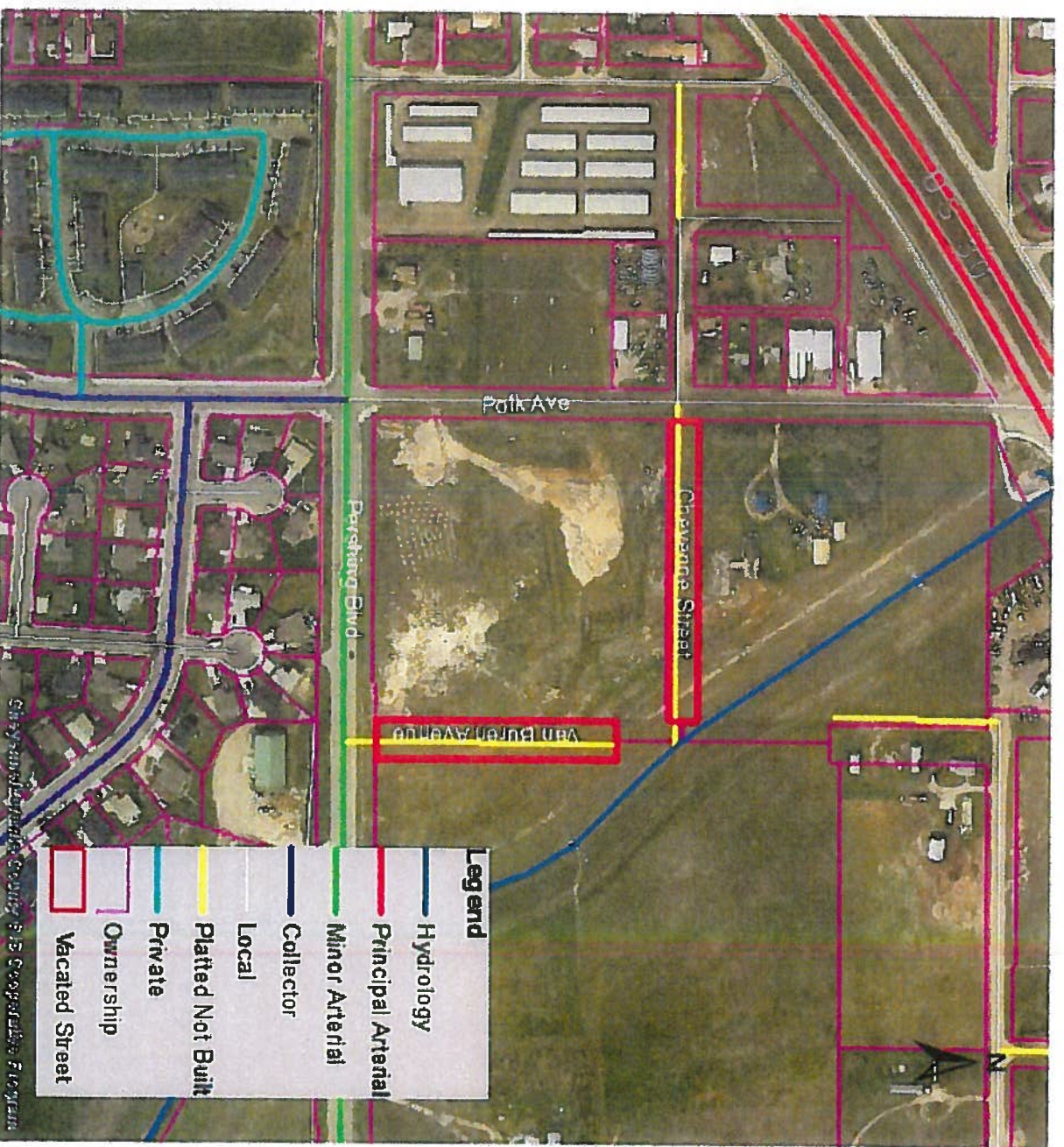
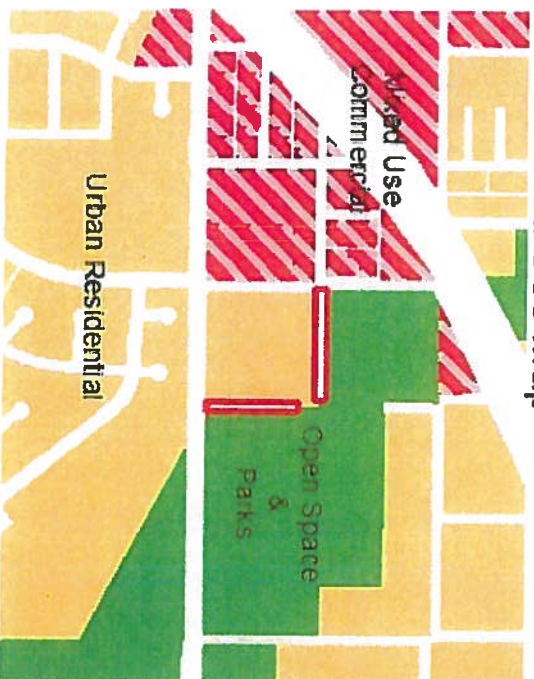
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Polk Addition

Zoning District



Future Land Use Map



Street Vacation UDC-13-00216



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2010 Aerial

Created by Donna Ferguson: 6/21/2013



